

4.3. Standard of proof

Even though different concepts as to the standard of proof have developed in the case law of the boards, they all have in common that a judgement is to be made on the basis of the application of the principle of free evaluation of evidence.

The EPO standard of proof is generally the balance of probabilities. By way of exception, the standard of proof of the balance of probabilities is shifted to a standard of proof beyond reasonable doubt mainly in opposition where only the opponent has access to information (evidence) concerning, for example, an alleged public prior use.

Of note in particular are some relatively recent decisions containing lengthy observations on the standard of proof and the previous case law on this, namely: T 2451/13 on the meaning of "beyond reasonable doubt" and T 545/08 on the meaning of "balance of probabilities" in the boards' case law; the latter decision, the board considered the matter in the general context of the law of evidence, concluding that a probability as low 51% would not suffice.

See also T 2466/13, in which it was likewise found that there was no need to decide on the applicable standard of proof. In the same vein, see T 768/20 and T 660/16 citing in particular to T 545/08 (points 8 and 11 of the Reasons).

4.3.1 General – "Balance of probabilities"

The EPO departments decide on the issues that arise before them on the basis of the evidence adduced by the parties. Their decisions need not, and in most cases cannot, be based on absolute conviction, but instead are to be arrived at on the basis of the overall balance of probabilities, in other words on the footing that one set of facts is more likely to be true than the other. If the result of the boards' evaluation of the evidence is such as to persuade them one way or another, then the **balance of probabilities** standard is met. This standard applies particularly in opposition appeal proceedings where the boards of appeal are called upon to reach a conclusion on the basis of the overall balance of probabilities, as distinct from "beyond all reasonable doubt" or "absolute conviction" (on the latter concept, refer to the more recent case T 2451/13). Each of the parties must therefore seek to prove facts alleged by it to that degree of proof (see e.g. T 182/89, OJ 1991, 391; T 270/90, OJ 1993, 725; T 859/90; T 109/91; T 409/91, OJ 1994, 653; T 1054/92 of 20 June 1996; T 296/93, OJ 1995, 627; T 326/93; T 343/95; T 363/96). The standard of balance of probabilities applies also in decisions issued in ex parte proceedings (T 381/87, OJ 1990, 213; T 69/86; T 128/87, OJ 1989, 406; T 939/92, OJ 1996, 309; T 545/08 on internet publications).

When an issue of fact is being examined and decided by the EPO on the balance of probabilities, **the more serious the issue** the more convincing must the evidence be to support it. If a decision on such an issue may result in refusal or revocation of a European patent, for example, in a case concerning alleged prior publication or prior use, the available evidence in relation to that issue must be very critically and strictly examined. A European patent should not be refused or revoked unless the grounds for refusal or

revocation (that is, the legal and factual reasons) are fully and properly proved (**T.750/94**, OJ 1998, 32; **T.329/02**; **T.750/94** was cited and considered in the context of evidence by the board in **T.545/08**). See Guidelines G-IV, 1 – November 2015 version): "If the applicant shows sound reasons for doubting whether the document forms part of the 'state of the art' in relation to his application and any further investigation does not produce evidence sufficient to remove that doubt, the examiner should not pursue the matter further." See also the version currently in force, G-IV, 1 – March 2022 version.

The board in **T.286/10**, citing **T.472/92**, observed that it is settled case law that evidence is generally assessed in terms of what seems most probable; it made an **exception** only for public prior use objections where practically all the supporting evidence lay within the power and knowledge of the opponent (see in this chapter III.G.4.3.2 "Public prior use"). It considered the balance of probabilities standard to be met if, after evaluating the evidence, a board was **persuaded** one way or the other.

For **internet publications**, the standard of proof is the balance of probabilities (**T.286/10**, **T.2227/11**, **T.1711/11**, **T.353/14**, **T.545/08**). See also chapters I.C.3.2.3 "Internet disclosures" and I.C.3.5.2 c) "Internet – proof of the date of availability" with reference to the Guidelines and OJ 2009, 456-462).

In the board's judgment in **T.658/04**, an expert's declaration which is not supported by verifiable facts but which merely constructs some hypotheses, cannot reflect the **common general knowledge** to be considered for assessing the sufficiency of disclosure within the meaning of Art. 83 EPC. For this reason, document (12) – declaration of U.K Pandit submitted by the appellant (patent proprietor) as an expert opinion – did not form part of the common general knowledge. **T.658/04** also summarised what is part of the common general knowledge according to the case law of the boards of appeal.

For cases dealing with requests for re-establishment of rights, see chapter III.E.4.4.

4.3.2 Public prior use

Although the standard of proof is the same for all objections covered by Art. 100 EPC (cf. **T.270/90**, OJ 1993, 725), the case law identifies two levels or standards of proof to be applied with regard to disputes around public prior use – either the "balance of probabilities" or "up to the hilt".

About burden of proof, see decision **T.2037/18**, which sets out detailed reasons on the issue (prior use; distinction between the admissibility and the substantive merits of the opposition; burden of presentation and burden of proof; principle of "*negativa non sunt probanda*"; non-confidentiality clause; shifting of the burden of proof) and cites numerous other decisions.

a) Both parties have access to the evidence: balance of probabilities

The **balance of probabilities** standard is applicable only if the patent proprietor and the opponent had equal access to the material allegedly in public prior use (**T.1776/14**).

The standard of the **balance of probabilities** is applicable when both the patent proprietor and the opponent had access to the material of which public prior use is alleged (see e.g. T 363/96, T 12/00, T 1105/00, T 2043/07, T 1464/05, point 4.3 of the Reasons; T 202/13, point 15.6.2 of the Reasons; T 1170/13, point 2.3 of the Reasons). In T 1984/14, the board held that since practically all the supporting evidence lay within the power and knowledge of the patent proprietor, the balance of probabilities standard applied to the evidence (provided by witnesses) regarding the public availability of D28a (software).

In the following cases, it was decided that the evidence did not lie within the sphere of the opponent and therefore that the **balance of probabilities** was the applicable standard of proof: T 918/11 (selling of containers outside the sphere of the opponent – mass production); T 55/01 (mass-produced goods offered for sale to customers); T 1170/13 (circumstances in relation with prior use showed that opponent did not easily dispose over all the necessary evidence); T 12/00 (in a case involving third parties, both parties could collect evidence); T 1464/05 (no relationship between the opponent and the third party involved in the prior use – sale for test); T 64/13 (prior use based on a purchase agreement between two companies neither of which, according to the respondent (opponent), had a business relationship with it – prior use originally cited by a third company before the German Federal Patent Court).

There is no need to prove an actual sale of a product made for the **mass market**, because simply putting it on the market already makes it publicly available (see T 55/01, point 4.1 of the Reasons, which was summarised and discussed in T 2165/18).

In T 1505/16 (slide mechanism of vehicle seat), the board, contrary to the opposition division, which had decided that the standard of proof to be applied was "beyond reasonable doubt" (or "absolute conviction"), held that according to established case law (citing T 184/07 and T 55/01 by way of example) the "balance of probabilities" standard of proof was usually applied to evaluate an alleged prior use relating to mass-produced consumer products.

See also T 563/18, in which the board likewise disagreed with the higher standard applied by the opposition division. Whilst the specific prior-use vehicle had indeed been within the opponent's control, the prior-use turbocharger had been sold as a component of a Golf IV vehicle produced and sold on a mass scale in 2003.

In case T 473/13 the alleged public prior used was by the respondent and patent proprietor, who had initially to prove a confidentiality agreement (burden of proof). The board considered that the much-cited "up to the hilt" criterion did not apply in the present circumstances, since the case law in this respect had been developed for the situation in which a prior use was by the opponent, which was not the case here.

In T 12/00, T 254/98 and T 729/91 the opponent alleging the public prior use was not involved in the circumstances relating to it (T 202/13).

In T 734/18, the appellant-proprietor contended that Company E, an independent supplier of coffee-machines having business relations with both it and opponent 1, had assisted

opponent 1 in proving its case of prior use (witness employed by Company E). It therefore asked the board to apply a different standard of proof from the one applied by the opposition division (namely "beyond reasonable doubt" instead of the "balance of probabilities"). The board was unconvinced and found that whenever an opponent wished to prove a prior use and the evidence of this was in the possession of a third party, a certain level of co-operation with that third party was normally required. The appellant-proprietor's second line of argument (company E and opponent 1 were jointly infringing the patent at issue) was an incomplete set of infringement allegations and supporting evidence from which no conclusions could be drawn. The board held that the appellant-proprietor had not substantiated its case for the board to treat company E as being in any different position from that found by the opposition division, namely that of an independent supplier outside the sphere of opponent 1.

b) Evidence within the sphere of the opponent: beyond any reasonable doubt

By contrast, in cases where all **evidence** in support of an alleged public prior use lies **within the power and knowledge of the opponent**, while the patentee has barely any or no access to it at all, it is incumbent upon the opponent to prove the alleged prior use **up to the hilt** (T 472/92, OJ 1998, 161; cf. T 782/92 referring to proof "beyond any reasonable doubt"). The boards decided that the evidence lied within the **sphere of the opponent**: T 2451/13 and T 703/12 (prior use originating from a subsidiary of the opponent); T 202/13 (the opponent was the successor of the company directly involved in the alleged public prior disclosure); T 2338/13 (opponent bore consequences of lack of information on relationship between him, the witness whose testimony he was relying on and the person who had contacted the witness); T 703/12 (product presented at the Ambiente trade fair in Frankfurt); T 274/12 (subsidiary – talks between firms); T 544/14 (subsidiary); T 1262/15 (subsidiary of the opponent); T 1469/08 (evidence presented involved opponent's company's sale); T 441/04 (witness testimony measured according to the high standard of proof beyond reasonable doubt); T 1682/09 ((the opponent's) packing system delivered to and mounted at a client's premises); T 1914/08, T 738/04, T 1776/14 (the two parties did not have equal access to evidence); T 2659/17 (since the alleged prior use took the form of sales of machines by the opponent, the patent proprietor's request to hear the author of a contested declaration as a witness should not have been refused).

Decision T 918/11 (point 3.3 of the Reasons) summarised the case law on standards of proof and the conclusion drawn in T 750/94 (OJ 1998, 32), with the board also emphasising the need to take into consideration that the application of the strict standard of proof referred to in the impugned decision was not justified in view of the fact that the actual production and the selling of the containers was clearly outside the sphere of the opponent. The board was also of the opinion that the application of the standard of proof "beyond reasonable doubt" did not justify disregarding the witness testimony (regarding facts which had occurred a long time ago). T 2451/13 summarised the principles governing the standard of proof in case of public prior use and specified the meaning of the standard of "up to the hilt" (see Catchword) used in T 472/92, which is to prove beyond reasonable doubt. All the evidence about the publication date of a brochure was essentially in the hands of the opponent (brochure originated from a subsidiary of the opponent, on this latter point see also T 738/04).

If any reasonable doubt exists as to what might or might not be the result of carrying out the literal disclosure and instructions of a prior art document, in other words if there remains a "grey area", then the case of anticipation based on such a document has to fail (T 793/93; see also T 464/94 and T 95/07).

In T 2010/08, the board pointed out that the requirement to prove prior use beyond reasonable doubt could not be circumvented by overstretching the principle of ex officio investigation and so shifting the burden of proof from the opponent to the opposition division or the board of appeal. (On the opponent's burden of proof in a case in which, by contrast, the balance of probabilities was applied as regards a prior use, see point 19 of T 72/16.)

The board in T 703/12 stated that all the evidence in support of the alleged public prior use (of a water filter jug, presented at the Ambiente trade fair in Frankfurt) lay within the power and knowledge of the appellant (opponent). The respondent (patent proprietor) disputed that the "what" was disclosed and that the "circumstances" of the prior use were proven beyond any reasonable doubt. The board was not convinced that either what was disclosed or the circumstances of the alleged disclosure had been proven to the required degree of certainty, namely beyond any reasonable doubt.

In T 483/17, since the sale and delivery of five roller bearings from the appellant (opponent) to a third party was completely outside the sphere of the respondent (patent proprietor), proof had to be provided "up to the hilt". Determining that the prior use had occurred thus required that the facts giving rise to the prior use be established without any gaps (see T 472/92, OJ 1998, 161, point 3.1 of the Reasons). However, this did not mean that the opponent had to provide each and every theoretically possible piece of evidence. Instead, it was sufficient that the evidence put forward convinced the board. On the other hand, a prior use was not considered to have been sufficiently proven if the proprietor had successfully pointed out any inconsistencies or drawn attention to any gaps in the opponent's chain of proof (see T 472/92). In the case in hand, the board considered it established that the alleged prior use had taken place, finding that neither doubts about the prior use expressed by the opposition division nor the arguments provided by the respondent (patent proprietor) pointed to any gap in the opponent's chain of proof.

T 274/12 dealt with an alleged prior use (talks between firms), all the evidence being in the hands of the opponent. In this case the board had to also decide whether there was an implicit obligation to maintain secrecy.

In T 202/13 several public prior disclosures were alleged by the respondents (opponents). The board agreed with the appellant that the standard "up to the hilt", or "beyond reasonable doubt", was appropriate in the present case. One of the joint respondents 2 was the successor of the company directly involved in the alleged public prior disclosure. Respondent 2, as successor, had full knowledge of the actions alleged to constitute the public prior disclosure and full access to the sources of evidence.

In T 1469/08 the appellant (opponent) alleged a public prior use in the form of the sale of composite "PARP PU" prostheses before the patent's priority date. Although the public